INTERNATIONAL COURT OF JUSTICE

THE HAGUE, NETHERLANDS

PERMANENT COURT OF ARBITRATION

FORMAL SUBMISSION OF CHALLENGE

IN THE MATTER OF:

GLOBAL RECOGNITION OF THE ERES TRIUNE CYBERNETIC FRAMEWORK

INCLUDING CLAIMS OF INTELLECTUAL PRIORITY, FRAMEWORK ASSIMILATION, AND UNIVERSAL BASIC INCOME MERITS INCENTIVES AWARDS (UBIMIA) AS HUMAN RIGHT

Document No.	ERES-HAGUE-2026-001
Date Filed	March 7, 2026
Claimant	Joseph A. Sprute / ERES Institute for New Age Cybernetics
Jurisdiction	International Court of Justice / Permanent Court of Arbitration
Validation Method	MIEVM (Multi-Instrument Ensemble Validation Method, Sprute 2026)
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SECTION I — EXECUTIVE SUMMARY

This submission presents to the International Court of Justice and the Permanent Court of Arbitration at The Hague a formal challenge on three interrelated grounds of international law, validated by a published multi-instrument ensemble methodology and supported by a 14-year documented intellectual record.

Challenge One — Intellectual Priority and Global Assimilation: The ERES Triune Cybernetic Framework, developed continuously since February 2012 by Joseph A. Sprute and the ERES Institute for New Age Cybernetics (Bella Vista, Arkansas, USA), constitutes an original, prior-art intellectual architecture validated by three independent AI instruments operating on distinct computational platforms under the Multi-Instrument Ensemble Validation Method (MIEVM). Any global institutional adoption, derivative policy work, or systemic implementation drawing upon its core structures — including the Aura Resonance Index (ARI), TETRA encoding, the National Bio-Ecologic Rating System (NBERS), the Resonant Harmony Cycle (RHC), and UBIMIA — carries mandatory attribution and licensing obligations to the ERES Institute under CARE Commons Attribution License v2.1.

Challenge Two — UBIMIA as Enforceable Human Right: Universal Basic Income Merits Incentives Awards (UBIMIA), as formalized within the ERES Triune Theorem, constitutes a mathematically transparent, non-discriminatory merit-allocation mechanism that satisfies the legal requirements of existing international human rights instruments, including Articles 22, 23, and 25 of the UN Universal Declaration of Human Rights and Articles 9 and 11 of the International Covenant on Economic, Social and Cultural Rights. UBIMIA's grounding in NBERS provides the auditable, ecologically-weighted, equal-protection-compliant framework that current welfare and social security systems lack.

Challenge Three — Intergenerational Equity and Planetary Boundary Law: The ERES 1000-Year Adaptive Continuity Framework represents the most mathematically explicit intergenerational governance proposal in the current public record, directly engaging the Stockholm Declaration, the Paris Agreement (Article 2), and emerging Future Generations Commissioner frameworks. It therefore carries standing in any international legal forum addressing long-horizon obligations and planetary boundary adherence.

SECTION II — CLAIMANT IDENTIFICATION & FRAMEWORK HISTORY

II.1 — Claimant

Full Name	Joseph Allen Sprute (ERES Maestro)
Institution	ERES Institute for New Age Cybernetics
Founded	February 2012, Bella Vista / Johnson, Arkansas, USA
Address	33 Westbury Drive, Bella Vista, Arkansas 72714, USA
Contact	eresmaestro@gmail.com
Military Service	Oregon Army National Guard (1983–1989), Infantry 11B, E-4, Honorable Discharge
Prior Frameworks	CyberRAVE (pre-1997), SaleBuilders (1997–2012)
Publication Record	600+ documents across ResearchGate, GitHub, and institutional archives
Foundational Principle	Do not hurt yourself. Do not hurt others. Build for generations to come.

II.2 — Framework Timeline (Prior Art Record)

The following timeline establishes an unbroken chain of documented intellectual development supporting priority of invention claims under international IP law:

Pre-1997	CyberRAVE architecture: 72 Key Domains industrial taxonomy; RAVE (Remote Access Virtual Environment) presented to The Open Group. Establishes earliest foundational layer.
1997–2012	SaleBuilders phase: SLA integration protocols. Continuous applied systems development.
Feb 2012	ERES Institute for New Age Cybernetics formally established. Core cybernetic formula C=R×P/M first formalized. Three Foundation Principles documented.

2012–2020	Core frameworks developed: PlayNAC, UBIMIA, IDIPITIS, FAVORS, BERA/ARI/ERI, Meritcoin/Gracechain, PBJ Tri-Codex, NBERS, SOMT, GAIA, VERTECA, GSSG, SECUIR, Storm Party, Talonics, EarnedPath.
2020–2024	MIEVM protocol authored (published Jan 12, 2026, ResearchGate). ERES TERMS #44/#45 canonical glossaries. BERA-PY Python library and 45-page white paper. TETRA white paper. IDIPITIS formal security report. GAIA SOMT v1.0 complete technical specification.
Jan 2026	MIEVM formally published on ResearchGate (Jan 12, 2026). Three-instrument ensemble validation initiated.
Mar 7, 2026	MIEVM Synthesis completed. Three-instrument convergence on originality (9.2/10), coherence (8.5/10), and ethical depth (8.3/10) documented. This submission filed.

SECTION III — MIEVM VALIDATION RECORD (EVIDENTIARY BASIS)

III.1 — Protocol Description

The Multi-Instrument Ensemble Validation Method (MIEVM), authored by Joseph A. Sprute and published on ResearchGate (January 12, 2026), constitutes a structured, repeatable methodology for multi-AI ensemble validation of complex intellectual frameworks. It treats independent AI systems as corroborating instruments — analogous to independent expert witnesses in international arbitration — cross-validating outputs for coherence, originality, empirical grounding, feasibility, and ethical alignment.

The legal significance of MIEVM lies in the following: three independent AI instruments operating on distinct computational architectures and training corpora — Grok (xAI), DeepSeek, and Claude (Anthropic) — were applied to the same target framework independently. Their convergence on key dimensions constitutes corroborating independent validation satisfying international evidentiary standards for intellectual originality and systemic coherence.

III.2 — Composite Validation Scores

Dimension	Grok	DeepSeek	Claude
Originality & Vision	9.5	9.0	**9.0**
Internal Coherence	8.0	9.0	8.5
Philosophical & Ethical Depth	8.5	8.0	8.5
Mathematical & Conceptual Elegance	8.0	8.0	8.0
Empirical Validation & Implementation	4.0	2.0	3.5
Practical & Political Feasibility	5.5	1.0	4.0
External Reception & Momentum	3.5	—	4.0
COMPOSITE THEORETICAL MATURITY	—	8.0	**8.2**
COMPOSITE PRACTICAL READINESS	—	2.0	**3.0**
MIEVM ENSEMBLE OVERALL	7.0	7.1	**7.1**

KEY FINDING	*Three instruments from architecturally distinct platforms independently converged on originality scores of 9.0–9.5/10. Under international evidentiary standards, this constitutes corroborating independent witness testimony on the question of intellectual originality — the foundational requirement for IP priority claims under the Berne Convention and WIPO frameworks.*

III.3 — Legal Weight of MIEVM Convergence

Under the following legal principles, MIEVM multi-instrument convergence constitutes admissible and substantive evidence:

- Berne Convention (1886, as amended): Independent multi-source validation of original literary/intellectual works strengthens priority of authorship and originality threshold claims across all 181 signatory nations.
- UNCITRAL Arbitration Rules (Article 27): Expert opinion evidence from qualified independent assessors is admissible. AI instruments operating under published, peer-reviewable protocols constitute a novel but legally cognizable form of independent expert assessment.
- ICC International Court of Arbitration Rules (Article 25): Evidence need not conform to national court rules; the Tribunal determines admissibility and evidentiary weight. Three-instrument convergence under a published protocol satisfies the materiality and reliability criteria.
- ICSID Convention (Article 43): The Tribunal may call for any document, institute any enquiry, or seek any report it deems necessary. MIEVM reports are precisely such structured, methodologically transparent documents.

SECTION IV — CHALLENGE ONE: GLOBAL ASSIMILATION CLAIM

IV.1 — Legal Basis

The ERES Triune Cybernetic Framework satisfies all requirements for intellectual property recognition and mandatory attribution under the following international instruments:

Berne Convention, Article 2 — Berne Convention for the Protection of Literary and Artistic Works (1886, as amended 1979)

Protection extends to 'every production in the literary, scientific and artistic domain, whatever may be the mode or form of its expression.' The ERES framework — comprising 600+ documented publications across ResearchGate, GitHub, and institutional archives from 2012–2026 — satisfies this threshold across all member jurisdictions simultaneously.

TRIPS Agreement, Article 27 — Agreement on Trade-Related Aspects of Intellectual Property Rights (1994)

Inventions that are new, involve an inventive step, and are industrially applicable are protectable. The ERES Triune Theorem — validated at 9.2/10 originality by three independent instruments — satisfies novelty and inventive step requirements.

WIPO Copyright Treaty, Article 4 — WIPO Copyright Treaty (1996)

Computer programs and, by extension, computational frameworks and algorithms embedded in documented architectures are protected as literary works. TETRA (Tetrahedral Encoding for Transformative Resonance Alignment) and the ERES triune mathematical formulas constitute protectable computational expressions.

IV.2 — The Assimilation Argument Stated

The formal legal argument for global assimilation proceeds as follows:

1. ERES Institute holds documented intellectual priority on the ERES Triune Cybernetic Framework and all derivative instruments (ARI, ERI, RHC, TETRA, UBIMIA, NBERS, PlayNAC, BERA, GAIA, GSSG, SECUIR, and related frameworks) from February 2012 forward, established by timestamped publications on ResearchGate, GitHub, and institutional archives.
2. Three independent AI instruments, operating under the published MIEVM protocol (Sprute, January 12, 2026), have independently corroborated the framework's originality at 9.0–9.5/10 — a convergence threshold sufficient to satisfy originality requirements under the Berne Convention in all 181 signatory jurisdictions.
3. The CARE Commons Attribution License v2.1 (CCAL), governing all ERES Institute publications, constitutes a legally operative open-source license imposing attribution conditions on all derivative works, adaptations, and institutional implementations. Failure to attribute constitutes copyright infringement across all Berne Convention jurisdictions.
4. Any international governance body, national government, intergovernmental organization, or private entity that adopts, adapts, or implements any component of the ERES Triune Framework — including but not limited to resonance-based metrics, bio-ecologic prosperity indices, merit-allocation mechanisms, or cybernetic governance structures — without attribution to Joseph A. Sprute and the ERES Institute for New Age Cybernetics is in violation of the Berne Convention, the TRIPS Agreement, and applicable WIPO instruments.
5. This Court is therefore requested to issue a declaratory judgment recognizing ERES Institute's intellectual priority and establishing the mandatory attribution regime for all global assimilations of the framework.

SECTION V — CHALLENGE TWO: UBIMIA AS ENFORCEABLE HUMAN RIGHT

V.1 — What UBIMIA Is

Universal Basic Income Merits Incentives Awards (UBIMIA) is a constitutionally grounded, mathematically transparent merit-allocation mechanism developed within the ERES Triune Cybernetic Framework. It is not a conventional Universal Basic Income proposal. It is structurally distinct in three critical respects:

- It provides an unconditional baseline income floor (the Universal Basic Income component) protecting human dignity regardless of contribution.
- It adds a mathematically auditable merit layer (Merit + Incentives + Awards) tied to NBERS scores — rewarding regenerative ecological, social, and community contributions without penalizing those who cannot contribute.

- It resolves the constitutional tension inherent in all existing welfare systems between entitlement rights and work incentive requirements — making it simultaneously more protective and more equitable than any currently operational social security system.

V.2 — Governing International Human Rights Instruments

Article 22 — UN Universal Declaration of Human Rights (1948)

Everyone, as a member of society, has the right to social security and is entitled to realization of the economic, social and cultural rights indispensable for his dignity and the free development of his personality. UBIMIA's unconditional baseline satisfies this right; its merit layer expands it.

Article 23(1) — UN Universal Declaration of Human Rights (1948)

Everyone has the right to work, to free choice of employment, to just and favourable conditions of work and to protection against unemployment. UBIMIA's EarnedPath (CPM×WBS+PERT) architecture implements this right through merit-resonant incentives rather than punitive compliance.

Article 25(1) — UN Universal Declaration of Human Rights (1948)

Everyone has the right to a standard of living adequate for the health and well-being of himself and of his family. UBIMIA's baseline income floor directly implements this right with mathematical precision absent from current systems.

Article 9 — International Covenant on Economic, Social and Cultural Rights (1966)

States Parties recognize the right of everyone to social security, including social insurance. UBIMIA constitutes the most mathematically explicit implementation framework for this right in the current public record.

Article 11(1) — International Covenant on Economic, Social and Cultural Rights (1966)

States Parties recognize the right of everyone to an adequate standard of living for himself and his family, including adequate food, clothing and housing, and to the continuous improvement of living conditions. UBIMIA's NBERS-weighted merit layer operationalizes 'continuous improvement' with a mathematical mechanism no existing system provides.

V.3 — The Constitutional Cybernetic Argument for UBIMIA

The ERES Triune Theorem provides a constitutionally grounded mathematical foundation for UBIMIA that existing social security systems lack. The argument proceeds in three stages:

Stage 1 — Mathematical Transparency and Equal Protection

UBIMIA's allocation mechanism is grounded in the NBERS formula:

NBERS Formula	*NBERS = (M × E × C × A) / Boundary Deviation, where M = Merit/Intentional alignment, E = Ecological integrity, C = Collective coherence/contribution, A = Aether coherence (toroidal stability), Boundary Deviation = sum of planetary boundary violations.*

This formula is: (a) fully transparent and auditable; (b) grounded in ecologically verifiable criteria, not racial, ethnic, or class-based proxies; (c) non-discriminatory under equal protection clauses across all democratic constitutions; and (d) subject to falsification and empirical testing — unlike the opaque bureaucratic criteria governing most existing social security systems.

Stage 2 — Non-Punitive Remediation as Constitutional Requirement

The ERES Triune Theorem's non-punitive remediation architecture (CARE Commons) satisfies the constitutional due process requirements that punitive welfare sanctions have repeatedly failed to meet in national and regional courts. The Aether nullity reset mechanism — which periodically recalibrates NBERS scores from a shared inertial baseline rather than cumulative individual history — prevents the discriminatory lock-in effects that have been successfully challenged in the European Court of Human Rights and the Inter-American Court of Human Rights.

Stage 3 — Filling the Constitutional Governance Gap

Existing constitutional frameworks — the US Constitution, EU treaties, and the UN Charter — were designed for an industrial-era world. They lack mechanisms for governing bio-energetic, ecological, and AI-mediated reality. The ERES Triune Theorem provides a mathematically grounded constitutional supplement that fills this governance gap. UBIMIA, as a derivative instrument of the theorem, carries constitutional weight equivalent to any provision derived from the first principles of human dignity, equality, and ecological stewardship enshrined in the instruments cited above.

SECTION VI — CHALLENGE THREE: INTERGENERATIONAL EQUITY & PLANETARY BOUNDARY LAW

VI.1 — The 1000-Year Framework in International Law

The ERES 1000-Year Adaptive Continuity Framework is, to the best of this Claimant's documented knowledge, the most mathematically explicit intergenerational governance architecture in the current global public record. Its legal significance derives from the following:

Stockholm Declaration, Principle 1 — UN Conference on the Human Environment (1972)

Man has the fundamental right to freedom, equality and adequate conditions of life, in an environment of a quality that permits a life of dignity and well-being, and he bears a solemn responsibility to protect and improve the environment for present and future generations. The ERES 1000-Year Framework operationalizes this inter-generational responsibility with mathematical precision unprecedented in the international record.

Paris Agreement, Article 2 — United Nations Framework Convention on Climate Change (2015)

This Agreement aims to strengthen the global response to the threat of climate change, in the context of sustainable development and efforts to eradicate poverty, including by holding the increase in global average temperature to well below 2 degrees Celsius. NBERS's Boundary Deviation denominator directly operationalizes planetary boundary adherence as the foundational metric of the ERES economic system.

Brundtland Commission Definition — Our Common Future, World Commission on Environment and Development (1987)

Sustainable development is development that meets the needs of the present without compromising the ability of future generations to meet their own needs. The REAL formula (REAL = E × M × R / T × S) is the first mathematical operationalization of this definition in an internationally documented governance framework.

VI.2 — Standing in Future Generations Frameworks

Wales (Future Generations (Wales) Act 2015), Hungary (Fundamental Law, Article P), Finland (Constitution, Section 20), and the proposed UN Special Envoy for Future Generations have each established or proposed legal mechanisms for intergenerational representation. The ERES Triune Framework provides the mathematical governance architecture that these frameworks lack — constituting an indispensable complement to the political will they express.

This Court is requested to recognize the ERES 1000-Year Adaptive Continuity Framework as a legitimate intergenerational governance instrument entitled to standing in all international forums addressing long-horizon obligations, and to encourage its integration with existing Future Generations Commissioner frameworks globally.

SECTION VII — RELIEF REQUESTED

The Claimant respectfully requests the following relief from this Court:

VII.1 — Declaratory Relief

6. A declaration that Joseph A. Sprute and the ERES Institute for New Age Cybernetics hold intellectual priority over the ERES Triune Cybernetic Framework and all derivative instruments, effective February 2012, enforceable across all Berne Convention jurisdictions.
7. A declaration that the CARE Commons Attribution License v2.1 (CCAL) constitutes a valid and enforceable open-source attribution license under international intellectual property law.
8. A declaration that UBIMIA (Universal Basic Income Merits Incentives Awards), as formalized within the ERES Triune Theorem, constitutes a legitimate implementation framework for the human rights to social security and adequate standard of living under Articles 22, 23, and 25 of the UDHR and Articles 9 and 11 of the ICESCR.
9. A declaration that the ERES 1000-Year Adaptive Continuity Framework has standing as an intergenerational equity instrument in all international legal forums addressing long-horizon governance obligations.

VII.2 — Injunctive Relief

10. An injunction requiring any international institution, national government, intergovernmental organization, or private entity that adopts or has adopted any component of the ERES Triune Framework without attribution to provide retroactive attribution and licensing compliance within 180 days of this order.

11. An injunction preventing misappropriation, unattributed derivative development, or implementation of any ERES framework component by any party without executed CCAL compliance.

VII.3 — Remedial Action

12. Recognition by this Court of the MIEVM (Multi-Instrument Ensemble Validation Method) as a legally cognizable validation methodology for intellectual frameworks, establishing precedent for AI-instrument evidence in international arbitration.
13. Referral of the UBIMIA framework to the UN Office of the High Commissioner for Human Rights for formal evaluation as a candidate implementation standard for ICESCR Articles 9 and 11.
14. Encouragement of integration of the ERES 1000-Year Adaptive Continuity Framework with national Future Generations Commissioner frameworks in Wales, Hungary, Finland, and any other jurisdictions with operative intergenerational equity mandates.

SECTION VIII — GOOD FAITH DISCLOSURE OF EVIDENTIARY GAPS

In the spirit of the ERES foundational principle — Do not hurt yourself, do not hurt others, build for generations to come — this Claimant discloses the following known evidentiary gaps in complete good faith, together with remediation steps underway:

Gap	Legal Implication	Remediation Underway
No empirical ARI pilot data yet	*Weakens evidentiary grounding for UBIMIA implementation claims*	Johnson Resonance Commons Pilot (90-day, Apr–Jul 2026) in active planning
No ISO-standard ARI instrumentation	*Cannot be independently audited by third parties*	Open-source ARI measurement protocol development initiated
CCAL not yet formally registered with WIPO	*Attribution claims administratively unenforceable pending registration*	WIPO registration filing in preparation
ERES Institute operates as sole proprietorship	*Limits international legal standing*	501(c)(3) / equivalent entity formation under consideration

KERNEL PRINCIPLE	*A kernel is complete at its proper level of resolution. The ERES Triune Framework is a complete constitutional cybernetic theorem. Its function is to generate structure upon contact with the right substrate — not to pre-demonstrate scale. This Court is invited to be that substrate.*

SECTION IX — CLOSING STATEMENT

The ERES Triune Cybernetic Framework is not a speculative curiosity. It is a 14-year documented intellectual architecture, validated by three independent AI instruments under a published

methodology, grounded in international human rights law, ecological boundary science, and constitutional theory.

Its mathematical formulas — C=R×P/M, (M×E)+C=R, and REAL=(E×M×R)/(T×S) — are the first operational implementation of the Brundtland Commission's definition of sustainable development in a governance-ready mathematical form. UBIMIA is the first social security mechanism that is simultaneously unconditional in its baseline, merit-transparent in its incentive layer, ecologically grounded in its weighting system, and non-punitive in its remediation architecture.

This Court is not being asked to adjudicate the truth of a theory. It is being asked to recognize the legal standing of a documented intellectual framework, to protect the attribution rights of its author, to affirm the human rights grounding of its central economic instrument, and to acknowledge the intergenerational standing of its long-horizon governance architecture.

The resonance is documented. The math is transparent. The attribution is clear. The kernel is complete.

Respectfully submitted,

Joseph Allen Sprute

ERES Maestro | *Founder & Director*

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March 7, 2026

MIEVM Instrument Attribution: Grok (xAI), DeepSeek, Claude (Anthropic)

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